UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Midcontinent Independent System Operator, Inc.	**)**	**Docket No. ER27-25-000**

PROTEST OF THE SOLAR ENERGY INDUSTRIES ASSOCIATION AND ADVANCED ENERGY UNITED

Pursuant to Rule 211 of the Federal Energy Regulatory Commission's (Commission) Rules of Practice and Procedure,[1] the Solar Energy Industries Association (SEIA)[2] and Advanced Energy United (United)[3] submit this protest of the Midcontinent Independent System Operator, Inc.'s (MISO) LARS filing.[4]

In the LARS filing, MISO proposes a process that would study load and generation on a coordinated basis. But to enter that process, a load and generation owner must be granted access by the Transmission Customer, which in MISO, is also often a vertically integrated Load Serving Entity (LSE) and Transmission Owner (TO).[5] In this way, a Transmission Customer is also a direct competitor to independent power producers in developing generation in MISO. MISO proposes to effectively grant the Transmission Customer, which has an *incentive* to discriminate against competitive generation, the *ability* to discriminate against competitive generation. By

[1] 18 C.F.R. § 385.211 (2026).
[2] The comments contained in this filing represent the position of SEIA as a trade organization on behalf of the solar industry, but do not necessarily reflect the views of any particular member with respect to any issue.
[3] Advanced Energy United is a national association of businesses that are making the energy we use secure, clean and affordable. Advanced Energy United is the only industry association in the United States that represents the full range of advanced energy technologies and services, both grid-scale and distributed. Advanced energy includes energy efficiency, demand response, energy storage, wind, solar, hydro, nuclear, electric vehicles, and more. The comments expressed in this filing represent the position of Advanced Energy United but may not represent the views of any particular member with respect to any issue.
[4] Midcontinent Independent System Operator, Inc., LARS, Docket No. ER26-3813-000 (Sept. 21, 2026) (LARS Proposal).
[5] *See Midcontinent Indep. Sys. Operator, Inc.*, 170 FERC ¶ 61,215, P 13 (2020) ("Notably, approximately 90% of the load in MISO is served by vertically integrated LSEs…"); *see also Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,131, P 87 (2025) (ERAS 1.0 Order); *and Midcontinent Indep. Sys. Operator, Inc.*, 189 FERC ¶ 61,159, PP 6, 27 (2024).

vesting the Transmission Customer with the discretion to file the LARS application,[6] MISO turns what could have been a just and reasonable process into one that is unjust, unreasonable, and unduly discriminatory.

MISO could have filed a proposal that worked for many stakeholders, rather than just a few; MISO still can make such a proposal. SEIA and United respectfully request that the Commission reject the LARS proposal, on the grounds that the proposal is unduly discriminatory, and provide guidance to MISO to refile the proposal with a mechanism that would allow any qualified market participant—including independent power producers, developers, and load customers—to initiate a submission, provided the applicable readiness and securitization requirements are met. However, if the Commission accepts LARS, SEIA and United request that the Commission expressly clarify that the Associated Transmission Customer's exclusive application role must be executed in a nondiscriminatory manner.

I. PROTEST

A. The LARS Proposal is unduly discriminatory because it allows LSEs to decide if their competitors may participate in the LARS process.

MISO's filing is part of its efforts to comply with the Commission's June 18, 2026, Show Cause Order.[7] As relevant here, the Show Cause Order found that MISO's tariff may be unjust and unreasonable because it does not contain provisions allowing an interconnection customer to seek interconnection service that reflects the operational dynamics of serving electrically proximate load.[8]

[6] Transmittal at 6, 24.
[7] Transmittal at 3.
[8] *Midcontinent Independent System Operator, Inc.,* Order Instituting Proceeding Under Section 206 of the Federal Power Act, 195 FERC ¶ 61,212 at P 113 (2026) ("Show Cause Order").

Under the LARS Proposal, MISO would study load and generation pairs in parallel, with both study processes brought under a common application.[9] To be eligible for LARS, an Interconnection Customer and the LARS Associated Load must provide an agreement demonstrating that the output of the LARS Generating Facility will serve the LARS Associated Load.[10] This agreement, along with the other LARS requirements, would be part of the LARS Application submitted by the LARS Associated Transmission Customer,[11] which is the "entity that procures Transmission Service for load and has a direct relationship with the load," and "often a Load Serving Entity ("LSE")."[12] The LARS Associated Transmission Customer is the only party that may initiate the LARS Application.[13]

As MISO states, the LARS Associated Transmission Customer is often a Load Serving Entity,[14] and in the MISO region, LSE are often vertically integrated utilities that have a generation affiliate and/or build their own generation.[15] These entities have a competitive motive to discriminate in favor of their own facilities.[16] Utility-owned generators are competing with independent power producers for the ability to be the power procurement solution for new large loads in MISO. MISO's proposed LARS creates a process wherein that competition to serve a new LARS Associated Load is organized and refereed by one of the competitors – the Transmission Customer utility. The Transmission Customer is the utility party with an interest in

[9] Transmittal at 5.
[10] Transmittal at 9.
[11] Transmittal at 7.
[12] Transmittal at 6.
[13] Transmittal at 6.
[14] Transmittal at 6.
[15] *See Midcontinent Indep. Sys. Operator, Inc.*, 170 FERC ¶ 61,215, P 13 (2020) ("Notably, approximately 90% of the load in MISO is served by vertically integrated LSEs…"); *see also Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,131, P 87 (2025) (ERAS 1.0 Order); *and Midcontinent Indep. Sys. Operator, Inc.*, 189 FERC ¶ 61,159, PP 6, 27 (2024).
[16] *Am. Clean Power Ass'n v. FERC*, 54 F.4th 722, 728 (D.C. Cir. 2022) (*discussing Ameren Servs. Co. v. FERC*, 880 F.3d 571, 578 (D.C. Cir. 2018)).

prioritizing its own generation development and limiting competition from independently developed generation within its service territory. Moreover, the Transmission Customer is often the same utility that owns the existing transmission infrastructure and is responsible for constructing the additional transmission facilities needed to accommodate the interconnection customer's generation and associated load. This is antithetical to the very purpose of Order No. 2003.

In Order No. 2003, the Commission found that "public utilities owning or controlling jurisdictional transmission facilities had the incentive to engage in, and had engaged in, unduly discriminatory transmission practices."[17] Because interconnection is an element of transmission service, the Commission established standard terms and procedures to "remedy undue discrimination and preferences under Sections 205 and 206 of the Federal Power Act."[18] The Commission did state that it would allow Regional Transmission Organizations and Independent System Operators (RTOs/ISOs), such as MISO, to propose independent entity variations for pricing and non-pricing provisions.[19] The Commission granted RTOs this flexibility because an RTO "is less likely to act in an unduly discriminatory manner than a Transmission Provider that is a market participant."[20] Despite this being a process under the MISO Tariff, MISO designed LARS to ensure it is the Transmission Customer—who has the incentive to discriminate against competitors—that controls access to the LARS process.

Critical to any decision on MISO's proposed LARS process is the understanding that MISO's use of the Transmission Customer, while sensible because the Transmission Customer

[17] *Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103, P 13 (2003).
[18] *Id*. at P 19.
[19] *Id*. at P 827.
[20] *Id*.

procures transmission service for load interconnecting to MISO's system, is in practical effect the same as MISO saying the vertically integrated LSE/TO utility; when a LARS Interconnection Request is in that utility's footprint, is in charge of whether to move a LARS project forward. That result presents the very instance the Commission adopted Order No. 2003 to address: "when the Transmission Provider is not independent and has an interest in frustrating rival generators."[21] MISO's flexibility to depart from the pro forma LGIP under the independent entity variation standard rests on the Commission's premise that an RTO or ISO is "less likely to act in an unduly discriminatory manner than a Transmission Provider that is a market participant."[22] That premise does not support LARS when the decision whether any generator enters the process is handed to the market participant whose own generation the interconnection customer would be competing against.

MISO claims that independent power producers are not prohibited from participating in the LARS process.[23] MISO is right. There is nothing in the Tariff language that *expressly* prohibits independent power producers from participating in the LARS process. However, simply stating that the process is open does not actually make the process meaningfully open. Yes, independent power producers can participate in the LARS process—if their competitors will let them.

Just as there is no express prohibition on independent power producer participation in LARS, there is no express requirement that a LARS Associated Transmission Customer must submit a request. Under the proposed tariff, it is possible for the LARS Associated Transmission Customer to hold up an otherwise viable arrangement between an independent Interconnection

[21] *Id.* at P 696.
[22] *Id*. at P 827.
[23] Transmittal at 7-8.

Customer and a LARS Associated Load. An independent power producer may have an executed agreement with the large-load customer, substantial site control, and a commercially mature project, but will remain unable to submit into the LARS process without signoff from the Transmission Customer.

The proposal requires the Transmission Owner—which again in MISO is likely to also be the LARS Associated Transmission Customer—to meet with the LARS Interconnection Customer and any other impacted parties.[24] However, there is enough ambiguity in the tariff to allow the Transmission Owner/ LARS Associated Transmission Customer to slow down a request. The tariff states that the parties "shall jointly agree upon a feasible Point of Interconnection" no later than 10 days before the LARS Application deadline.[25] But, there is no provisions for situations in which the parties cannot agree on the Point of Interconnection, and there is no mechanism by which the LARS Interconnection Customer can seek recourse if the parties do not agree on a Point of Interconnection. Nor are there any provisions that require the LARS Associated Transmission Customer to submit an application, effectively granting them the ability to prevent independent power producers from entering the LARS process.

This undue discrimination can be fixed. SEIA and United request that the Commission reject MISO's LARS proposal, because it is unduly discriminatory. SEIA and United also request that the Commission provide guidance to MISO to refile the proposal with a mechanism that would allow any qualified market participant—including independent power producers, developers, and load customers—to initiate a submission directly to MISO, provided the applicable readiness and securitization requirements are met.

[24] Proposed Tariff, Attach. X, Sec. 3.12.1.
[25] Proposed Tariff, Attach. X, Sec. 3.12.1.

B. The LARS proposal is unjust and unreasonable because it conditions generators' interconnection rights on specific large loads while risking double-counted transmission headroom, harm to earlier-queued projects, and improper cost shifts.

i. LARS makes a generator's rights depend on a specific large load, exposing viable projects to operational and financial uncertainty if that load departs.

MISO's proposed LARS framework provides expedited Interconnection Service based on a generator's relationship with a particular large load,[26] but fails to address the very real possibility that the relationship may be altered over time due to business decisions of the large load, creating significant uncertainty regarding the long-term durability of a generator's interconnection rights.[27] Without any kind of transition mechanism, this uncertainty may force otherwise viable generating resources into an uncertain and potentially disruptive transition process. By transferring the risk of the load customer's future business decisions to the generator, the proposal could penalize generators for circumstances they cannot control and thereby deter otherwise viable projects from using the LARS pathway.

Under the LARS Proposal, a generator's eligibility for LARS Interconnection Service is tied to the continued existence of a specific associated large load for a substantial portion of the generator's operating life.[28] LARS provides off-ramps when an associated load departs.[29] If the LARS Associated Load withdraws, ceases taking transmission service, or the required commercial agreement terminates during the first fifteen years, the generator's LLGIA ultimately will be terminated and the generator must obtain new Interconnection Service through the Definitive Planning Process (DPP) to continue operating.[30] This proposed structure creates a

[26] Transmittal at 7.
[27] Transmittal at 16.
[28] Transmittal at 5.
[29] Transmittal at 34.
[30] Transmittal at 16-18.

material risk that a generator could lose the benefit of its expedited interconnection path through no fault of its own. Large-load facilities may cease operations, relocate, reduce demand, change suppliers, or otherwise alter their commercial arrangements for reasons unrelated to the generator's performance. When this occurs, the generator faces uncertainty regarding its future operating rights and potential migration into the DPP process.[31]

MISO acknowledges that the proposed process could "strand a Generating Facility" with remaining useful life and create "significant long-term commercial risk" affecting project financing,[32] yet its proposed structure does not resolve those concerns. The risk of stranding a generator is particularly acute given the long development timelines and financing horizons of generation projects. Developers, lenders, and investors require predictable, durable interconnection rights. Conditioning those rights on the continuation of a particular customer relationship introduces uncertainty that may undermine financing and increase project costs. In effect, the proposal requires developers to evaluate not only the viability of the generation project, but also the associated load's long-term business prospects.

The proposed transition mechanism is woefully inadequate to address this stranded asset risk. If an associated load departs during the period in which the generator remains subject to the fifteen-year pairing requirement, the generator's LLGIA ultimately may be terminated and the generator must obtain new Interconnection Service through the DPP to continue operations.[33] MISO proposes only a temporary transition period of up to one year, during which the generating facility would remain subject to Quarterly Operating Limits (QOL) and Annual ERIS (AERIS) restrictions while seeking new Interconnection Service through the DPP.[34] Although MISO states

[31] Transmittal at 16-18; 34-35; 41-42.
[32] Transmittal at 17.
[33] Transmittal at 34.
[34] Transmittal at 17, 35.

that it expects future DPP cycles will be completed within one year and provides for an extension if DPP processing is delayed beyond the generator's control,[35] MISO provides little support for that assumption and does not demonstrate that a generator can transition to the DPP without adverse operational or commercial impacts.[36] Given the current backlogged status of the DPP, the possibility of being put through that process means exposure to potentially years of delay, even after a facility has already entered commercial operation.

MISO's limited transition stands in stark contrast to the approach taken by the Southwest Power Pool (SPP) in its High Impact Large Load Generation Assessment (HILLGA) proposal, which the Commission specifically referenced as an example when directing other regions to ensure adequate pathways for studying electrically proximate load and generation together.[37] In HILLGA, SPP establishes upfront that generators using the pathway are granted only Load Limited Resource Interconnection Service (LLRIS), and provides five years for the interconnecting generator to obtain full interconnection rights.[38] While LARS differs from HILLGA in other important ways, the necessity of a clear pathway for the interconnecting generator to become a system resource applies equally here.

Absent additional protections, MISO's proposal creates the possibility of an arbitrary interconnection-service cliff in which a resource that was properly interconnected, financed, and operating becomes subject to substantial uncertainty because of events occurring outside the generator's control. Such outcomes would undermine investment certainty and could discourage participation in the very framework MISO seeks to establish.

[35] Transmittal at 18.
[36] Transmittal at 17-18, 35, 41-42.
[37] EL.26-70-000 at 14.
[38] ER26-247-000 Transmittal at 5.

Accordingly, the Commission should reject the LARS filing, and direct MISO to provide additional clarity in a subsequent proposal regarding the treatment of generators when associated loads cease operations or otherwise terminate the relationship underlying a LARS request. MISO should establish transparent transition procedures, clearly define the rights and obligations of affected generators, and ensure that generators are not exposed to unreasonable operational or commercial risks due solely to changes in a customer's circumstances.

ii. MISO has not demonstrated how transmission capability will be transparently managed across parallel LARS and DPP study processes to protect earlier-queued projects from double-counted headroom, cost shifts, and diminished available capability.

MISO has not adequately demonstrated that the proposed LARS framework will preserve transparency and certainty for customers currently progressing through the Generator Interconnection Queue. While MISO states that protecting the DPP process was an express consideration during development of the proposal,[39] there is limited detail regarding how transmission capability assumptions will be coordinated between LARS and DPP studies or how potential conflicts will be identified and resolved before stakeholders make significant commercial and development decisions.[40]

Under the proposal, LARS and DPP requests will be studied separately and using different assumptions.[41] MISO specifically states that LARS studies will not include interconnection requests currently in the generator interconnection queue that have not executed GIAs.[42] As a result, projects advancing through the two processes may be evaluated based on different assumptions regarding future system conditions and available transmission capability.[43]

[39] Transmittal at 20.
[40] Transmittal at 51.
[41] Transmittal at 23.
[42] Transmittal at 12.
[43] Transmittal at 12-13.

MISO contends that the separate study frameworks ultimately will be reconciled through the MISO Transmission Expansion Plan (MTEP) process, and argues that LARS projects will not affect DPP studies because the projects are evaluated independently.[44] Although LARS customers remain responsible for applicable Network Upgrade costs, cost responsibility is not the central concern. The filing does not adequately explain how MISO will coordinate transmission-capability assumptions across parallel interconnection processes. Nor does it explain how existing queue customers will receive timely visibility into contemporaneous LARS studies before making significant commercial and development decisions. These uncertainties could create unjust and unreasonable results for interconnection customers and must be clarified.

Specifically, the filing does not sufficiently explain how reconciliation between the LARS and DPP processes will occur relative to key interconnection milestones, including completion of studies, execution of GIAs, commencement of construction activities, and major financing commitments. Although MISO states that reconciliation will occur through MTEP, the proposal provides little information regarding when potential conflicts between LARS and DPP assumptions will be identified or how affected customers will be informed.[45]

This lack of transparency raises concerns irrespective of ultimate cost responsibility. Interconnection customers routinely make substantial commercial commitments based on study results and anticipated interconnection outcomes. Developers rely on those results when negotiating financing arrangements, equipment procurement contracts, power purchase agreements, and other project milestones. Yet the filing provides little explanation regarding how

[44] Transmittal at 13, 20.
[45] Transmittal at 13, 20.

interconnection customers will be notified if assumptions underlying those commitments are later modified as a result of reconciliation between LARS and DPP studies.[46]

Nor does MISO identify a clear mechanism for addressing circumstances in which transmission capability assumptions used in one process ultimately prove inconsistent with assumptions used in the other process. While MISO generally states that resulting transmission needs would be addressed through existing planning processes and cost-allocation mechanisms,[47] MISO does not explain when such inconsistencies would be identified, whether customers would receive advance notice of potential impacts, or how MISO would ensure that existing queue customers retain reasonable certainty regarding their interconnection expectations as the two processes operate concurrently. MISO acknowledges that stakeholders specifically raised issues regarding the relationship between LARS and the existing Generator Interconnection Queue during the stakeholder process,[48] but does not sufficiently resolve these issues. MISO's proposal offers limited detail regarding the specific procedures that will preserve transparency and predictability for customers already progressing through the queue, creating uncertainty and discouraging participation.

Accordingly, the Commission should require MISO to provide additional information regarding how transmission-capability assumptions will be coordinated between LARS and DPP studies, when reconciliation will occur relative to major interconnection milestones, how affected customers will be notified of resulting impacts, and what safeguards will ensure that existing queue customers maintain sufficient visibility into the transmission capability

[46] Transmittal at 20.
[47] Transmittal at 13.
[48] Transmittal at 20, 51.

assumptions underlying parallel LARS studies before significant commercial commitments are made.

III. ALTERNATIVE RECOMMENDATION

A. Alternatively, the Commission should clarify that the LARS application process must be administered on a nondiscriminatory basis.

If the Commission disagrees with SEIA and United that MISO's LARS proposal is unjust and unreasonable, or unduly discriminatory, and accepts the proposal, SEIA and United request, in the alternative, that the Commission expressly clarify that the LARS Associated Transmission Customer's exclusive initial application role does not authorize discriminatory treatment of an otherwise qualified applicant. As discussed above, the Federal Power Act and Order No. 2003 require just and reasonable, nondiscriminatory access to jurisdictional transmission and generator interconnection service.[49] To preserve those principles, the Commission should expressly require nondiscriminatory administration of LARS from the outset.

Specifically, the Commission should clarify that once an applicant meets all applicable LARS eligibility, readiness, financial security, and application requirements, the Commission expects the LARS Associated Transmission Customer to apply the same submission standards and timelines it applies to its own similarly situated projects. During stakeholder engagement, MISO responded to concerns about limiting application submission to LSEs by explaining that IPPs could participate as Interconnection Customers, even though the Associated Transmission Customer would initiate the application.[50] That response, however, does not resolve the concern

[49] 16 U.S.C. § 824d(a)–(b); Order No. 2003, 104 FERC ¶ 61,103, PP 12, 18–20.
[50] MISO, *MISO Response to Feedback: Large Load Addition Resource Study (LARS)*, at 6 (Aug. 20, 2026), https://cdn.misoenergy.org/LLWG%20Generation%20and%20Large%20Load%20Alignment%20Response%20%28LLWG-2026-6%29%20%2820260716%29778046.pdf (Feedback: "Why is the submittal limited to Load Serving Entities? This is potentially discriminatory to IPPs." MISO Response: "While the LARS application process will be

that the Associated Transmission Customer could use its control over submission to favor its own generation. The requested clarification would preserve the Associated Transmission Customer's service role in the LARS process while ensuring nondiscriminatory access to the coordinated study process.

The Commission should also expressly clarify that acceptance of LARS does not insulate discriminatory implementation from subsequent challenges. This would be consistent with the Commission's adjudication of Section 206 complaints challenging interconnection study procedures. For example, in *EDF Renewable Energy, Inc. v. Midcontinent Indep. Sys. Operator, Inc.*, the Commission permitted the RTOs to retain their existing Affected Systems modeling standards "assuming they apply such criteria and procedures consistently and on a not unduly discriminatory basis among all interconnection requests."[51] The Commission should likewise clarify that retaining the Associated Transmission Customer's application role does not foreclose review of discriminatory administration of LARS upon a future, case-specific complaint. An express clarification would provide notice of the governing standard and strengthen the basis for case-specific relief while preserving MISO's proposed application structure.

IV. CONCLUSION

MISO's proposal makes the Transmission Customers—most often vertically integrated LSE and TO utility—the gatekeepers of this new competitively advantageous process. In a region such as MISO's where many utilities are vertically integrated, that role grants these

initiated by the LARS Associated Transmission Customer, the Interconnection Customer, Transmission Owner, and LARS Associated Transmission Customer must all complete the required information as part of the application before it will be reviewed by MISO. IPPs are not prohibited from participating as the Interconnection Customer as part of the process.").

[51] *EDF Renewable Energy, Inc. v. Midcontinent Indep. Sys. Operator, Inc.*, 168 FERC ¶ 61,173, P 86 (2019).

utilities the ability to determine which, if any, of its competitors may participate in the LARS process. And regardless of which projects go through the LARS process, the impact on earlier-queued projects will be negative. While there are aspects of the filing that would pass muster under the Federal Power Act, its proposal to install the Transmission Customer as the gatekeepers to the LARS process and impacts to the existing queue are why it does not meet its burden under the Federal Power Act. SEIA and United request that the Commission reject MISO's filing with guidance to MISO to refile the proposal with a mechanism that would allow any qualified market participant—including independent power producers, developers, and load customers—to initiate a submission directly to MISO, provided the applicable readiness and securitization requirements are met. Allowing LSEs to determine which of its competitors may participate in the markets would undermine Order No. 2003. However, if the Commission accepts MISO's proposal, SEIA and United request that the Commission expressly clarify that the LARS application process must be administered on a nondiscriminatory basis and that acceptance does not foreclose subsequent challenges to discriminatory implementation.

Respectfully submitted,

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Dated: October 23, 2026

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated at Washington, DC, this 23rd day of October, 2026.

/s/ Caitlin Marquis
Caitlin Marquis